

COMMITTEE ON GOVERNMENT
SENATE AMENDMENTS TO H.B. 2460
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 9, chapter 4, article 8, Arizona Revised Statutes,
3 is amended by adding section 9-500.54, to read:

4 9-500.54. Business property; theft; penalties; prohibition;
5 enforcement; state preemption; definitions

6 A. NOTWITHSTANDING ANY OTHER LAW, A MUNICIPALITY MAY NOT ADOPT OR
7 ENFORCE ANY ORDINANCE, RULE OR REGULATION THAT IMPOSES A PENALTY ON A
8 BUSINESS FOR THE THEFT OF THE MOVABLE PROPERTY OF THE BUSINESS.

9 B. A MUNICIPALITY MAY NOT ENFORCE A PENALTY THAT DOES ANY OF THE
10 FOLLOWING:

11 1. IMPOSES FINES OR FEES FOR ABANDONED MOVABLE PROPERTY THAT
12 BELONGS TO A BUSINESS THAT IS FOUND OFF OF THE PROPERTY OF THE BUSINESS.

13 2. REQUIRES A BUSINESS TO PAY FOR THE RETRIEVAL, STORAGE OR
14 DISPOSAL OF MOVABLE PROPERTY THAT BELONGS TO THE BUSINESS AND THAT HAS
15 BEEN RETRIEVED OR COLLECTED BY THE MUNICIPALITY.

16 3. MANDATES THAT A BUSINESS CERTIFY COMPLIANCE WITH MUNICIPAL
17 RETRIEVAL PROGRAMS UNDER THE THREAT OF IMPOSING A PENALTY IF THE
18 NONCOMPLIANCE BY THE BUSINESS IS BASED ON THE THEFT OF THE MOVABLE
19 PROPERTY THAT BELONGS TO THE BUSINESS.

20 C. A MUNICIPALITY MAY DO ANY OF THE FOLLOWING:

21 1. NOTIFY A BUSINESS OF THE LOCATION OF MOVABLE PROPERTY THAT
22 BELONGS TO THE BUSINESS AND ALLOW THE BUSINESS TO VOLUNTARILY RETRIEVE THE
23 MOVABLE PROPERTY WITHOUT IMPOSING ANY FEE.

1 2. INSTITUTE CRIMINAL OR CIVIL PENALTIES AGAINST A PERSON WHO IS
2 RESPONSIBLE FOR THE THEFT OF MOVABLE PROPERTY THAT BELONGS TO A BUSINESS.

3 3. ENACT GENERAL NUISANCE ABATEMENT ORDINANCES, RULES OR
4 REGULATIONS THAT DO NOT SPECIFICALLY INCLUDE IMPOSING A PENALTY ON A
5 BUSINESS FOR THE THEFT OF MOVABLE PROPERTY THAT BELONGS TO THE BUSINESS.

6 D. THE ATTORNEY GENERAL OR ANY BUSINESS MAY BRING AN ACTION IN THE
7 SUPERIOR COURT TO ENJOIN A MUNICIPALITY FROM ENFORCING AN ORDINANCE, RULE
8 OR REGULATION THAT IS PROHIBITED BY THIS SECTION. A BUSINESS THAT
9 PREVAILS IN AN ACTION BROUGHT PURSUANT TO THIS SUBSECTION IS ENTITLED TO
10 RECOVERY OF REASONABLE ATTORNEY FEES AND COSTS.

11 E. THE REGULATION OF THE THEFT OF MOVABLE PROPERTY OF A BUSINESS IS
12 OF STATEWIDE CONCERN. THE REGULATION OF THE THEFT OF MOVABLE PROPERTY OF
13 A BUSINESS PURSUANT TO THIS SECTION IS NOT SUBJECT TO FURTHER REGULATION
14 BY A MUNICIPALITY.

15 F. FOR THE PURPOSES OF THIS SECTION:

16 1. "BUSINESS" MEANS ANY COMMERCIAL ENTERPRISE THAT OWNS OR PROVIDES
17 MOVABLE PROPERTY FOR USE BY THE CUSTOMERS OF THE BUSINESS.

18 2. "MOVABLE PROPERTY":

19 (a) MEANS TANGIBLE PROPERTY THAT IS OWNED BY A BUSINESS THAT IS
20 INTENDED FOR TEMPORARY USE BY THE CUSTOMERS OF THE BUSINESS.

21 (b) INCLUDES SHOPPING CARTS AND HAND-HELD BASKETS.

22 3. "THEFT" MEANS UNAUTHORIZED TAKING, REMOVING OR ABANDONING
23 MOVABLE PROPERTY THAT BELONGS TO A BUSINESS BY A PERSON OTHER THAN THE
24 OWNER OF THE BUSINESS OR AN OWNER'S AUTHORIZED AGENT.

25 Sec. 2. Title 11, chapter 2, article 4, Arizona Revised Statutes,
26 is amended by adding section 11-269.31, to read:

27 11-269.31. Business property; theft; penalties; prohibition;
28 enforcement; state preemption; definitions

29 A. NOTWITHSTANDING ANY OTHER LAW, A COUNTY MAY NOT ADOPT OR ENFORCE
30 ANY ORDINANCE, RULE OR REGULATION THAT IMPOSES A PENALTY ON A BUSINESS FOR
31 THE THEFT OF THE MOVABLE PROPERTY OF THE BUSINESS.

32 B. A COUNTY MAY NOT ENFORCE A PENALTY THAT DOES ANY OF THE
33 FOLLOWING:

34 1. IMPOSES FINES OR FEES FOR ABANDONED MOVABLE PROPERTY THAT
35 BELONGS TO A BUSINESS THAT IS FOUND OFF OF THE PROPERTY OF THE BUSINESS.

36 2. REQUIRES A BUSINESS TO PAY FOR THE RETRIEVAL, STORAGE OR
37 DISPOSAL OF MOVABLE PROPERTY THAT BELONGS TO THE BUSINESS AND THAT HAS
38 BEEN RETRIEVED OR COLLECTED BY THE ~~[MUNICIPALITY]~~ [COUNTY].

39 3. MANDATES THAT A BUSINESS CERTIFY COMPLIANCE WITH COUNTY
40 RETRIEVAL PROGRAMS UNDER THE THREAT OF IMPOSING A PENALTY IF THE

1 NONCOMPLIANCE BY THE BUSINESS IS BASED ON THE THEFT OF THE MOVABLE
2 PROPERTY THAT BELONGS TO THE BUSINESS.

3 C. A COUNTY MAY DO ANY OF THE FOLLOWING:

4 1. NOTIFY A BUSINESS OF THE LOCATION OF MOVABLE PROPERTY THAT
5 BELONGS TO THE BUSINESS AND ALLOW THE BUSINESS TO VOLUNTARILY RETRIEVE THE
6 MOVABLE PROPERTY WITHOUT IMPOSING ANY FEE.

7 2. INSTITUTE CRIMINAL OR CIVIL PENALTIES AGAINST A PERSON WHO IS
8 RESPONSIBLE FOR THE THEFT OF MOVABLE PROPERTY THAT BELONGS TO A BUSINESS.

9 3. ENACT GENERAL NUISANCE ABATEMENT ORDINANCES, RULES OR
10 REGULATIONS THAT DO NOT SPECIFICALLY INCLUDE IMPOSING A PENALTY ON A
11 BUSINESS FOR THE THEFT OF MOVABLE PROPERTY THAT BELONGS TO THE BUSINESS.

12 D. THE ATTORNEY GENERAL OR ANY BUSINESS MAY BRING AN ACTION IN THE
13 SUPERIOR COURT TO ENJOIN A COUNTY FROM ENFORCING AN ORDINANCE, RULE OR
14 REGULATION THAT IS PROHIBITED BY THIS SECTION. A BUSINESS THAT PREVAILS
15 IN AN ACTION BROUGHT PURSUANT TO THIS SUBSECTION IS ENTITLED TO RECOVERY
16 OF REASONABLE ATTORNEY FEES AND COSTS.

17 E. THE REGULATION OF THE THEFT OF MOVABLE PROPERTY OF A BUSINESS IS
18 OF STATEWIDE CONCERN. THE REGULATION OF THE THEFT OF MOVABLE PROPERTY OF
19 A BUSINESS PURSUANT TO THIS SECTION IS NOT SUBJECT TO FURTHER REGULATION
20 BY A COUNTY.

21 F. FOR THE PURPOSES OF THIS SECTION:

22 1. "BUSINESS" MEANS ANY COMMERCIAL ENTERPRISE THAT OWNS OR PROVIDES
23 MOVABLE PROPERTY FOR USE BY THE CUSTOMERS OF THE BUSINESS.

24 2. "MOVABLE PROPERTY":

25 (a) MEANS TANGIBLE PROPERTY THAT IS OWNED BY A BUSINESS THAT IS
26 INTENDED FOR TEMPORARY USE BY THE CUSTOMERS OF THE BUSINESS.

27 (b) INCLUDES SHOPPING CARTS AND HAND-HELD BASKETS.

28 3. "THEFT" MEANS UNAUTHORIZED TAKING, REMOVING OR ABANDONING
29 MOVABLE PROPERTY THAT BELONGS TO A BUSINESS BY A PERSON OTHER THAN THE
30 OWNER OF THE BUSINESS OR AN OWNER'S AUTHORIZED AGENT.

31 Sec. 3. Severability

32 If a provision of this act or its application to any person or
33 circumstance is held invalid, the invalidity does not affect other
34 provisions or applications of the act that can be given effect without the
35 invalid provision or application, and to this end the provisions of this
36 act are severable.

37 Sec. 4. Legislative findings

38 The legislature finds that:

39 1. Theft of business property, including shopping carts, imposes
40 significant financial burdens on businesses through no fault of their own.

1 2. Local ordinances that penalize businesses for a theft or
2 abandonment of their property by third parties, including criminals or
3 unauthorized users, unfairly shifts responsibility from perpetrators to
4 victims.

5 3. Penalties imposed by local ordinances discourage business
6 investment, increase operational costs and may lead to higher prices for
7 consumers.

8 4. It is the policy of this state to protect businesses from undue
9 regulations that penalize them for crimes committed against them.

10 Sec. 5. Short title

11 This act may be cited as the "Completely Asinine Rule Termination
12 (CART) Act".

13 Enroll and engross to conform

14 Amend title to conform

2460GOV.docx
03/24/2026
12:44 PM
S: AN/ci
130MSSJJZ